

24STLC05914 24STLC05914

County: los-angeles

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Case Number: 24STLC05914 Hearing Date: August 31, 2026 Dept: 26

TENTATIVE RULING:

The parties are ordered to appear at the August 31, 2026 hearing to discuss the status of Defendant's discovery requests.

Analysis:

On August 15, 2024, Plaintiff Scottsdale Townhouses Association ("Plaintiff") filed the instant action against Defendant Maria Toledo ("Defendant"). Following Defendant's failure to file a responsive pleading, the Court entered her default on December 20, 2024. Plaintiff then obtained default judgment against Defendant on February 13, 2025. On June 10, 2026, the Court granted Defendant's Motion to Vacate Default and Default Judgment. (Minute Order, 06/10/26.)

On August 4, 2026, Defendant filed the instant Motion to Compel Further Responses to Defendant's First Set of Requests for Production of Documents. Plaintiff filed an opposition on August 18, 2026 and Defendant replied on August 21, 2026.

Discussion

Defendant moves for an order compelling Plaintiff's further responses to Request for Production of Documents, Set One, and an award of monetary sanctions in the amount of \$1,250.00, pursuant to Code of Civil Procedure section 2031.310. The Motion addressed Request for Production Nos. 1, 2, 4, 9, 10, 17, 18, 19, 24, and 26.

Procedural Requirements

Notice of the

motion to compel further must be given “within 45 days of service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing,” otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).) This time is extended based on the manner of service; service by electronic mail extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Defendant served supplemental responses to the Request for Production of Documents, Set One, on July 27, 2026. (Opp., Wolfson Decl., ¶¶4-5 and Exh. A.) The instant Motion was timely filed and served on August 4, 2026.

Second, California

Rules of Court Rule 3.1345 requires all motions or responses involving further discovery to include a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules of Court, Rule 3.1345, subd. (a).) Alternatively, “the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2031.310, subd. (b)(3).) The Motion is accompanied by a separate statement. (Motion, Separate Statement, filed 08/04/26.)

Finally, the motion must

be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b)(1).) The Motion does not set forth a clear timeline of the responses served by Plaintiff. Defendant’s declaration states that after she served Plaintiff with the First Set of Requests for Production of Documents, Plaintiff served written responses with objections and indicated that certain documents would be produced following a reasonable search. (Motion, Toledo Decl., ¶¶4-5.) Defendant sent Plaintiff a meet and confer letter on July 18, 2026, after which Plaintiff served supplemental responses on July 27, 2026. (Opp., Wolfson Decl., ¶¶4-5 and Exh. A.) However, Defendant does not indicate that any further meet and confer took place after service of the supplemental responses on July 27, 2026. (Motion, Toledo Decl., ¶¶7-8.) Instead, Defendant filed the instant Motion on August 4, 2026 and Plaintiff followed up with a meet and confer letter on August 6, 2026. (Opp., Wolfson Decl., ¶¶5-7.)

This is not a

sufficient meet and confer effort. Defendant did not inform Plaintiff what she considered to be the problem with Plaintiff's production dated July 27, 2026. Instead, Defendant filed the instant Motion to address those deficiencies. While it is possible that Defendant raised some of the problems in the earlier meet and confer letter, failing to follow up after Plaintiff sought to correct its production was an incomplete effort at resolving the dispute without the Court's intervention. Upon receiving the Motion, Plaintiff realized that certain matters had been inadvertently omitted from the production, and transmitted them immediately. (Wolfson Decl., ¶6.) Such circumstances are why adequate meet-and-confer efforts are beneficial, and required.

The parties' papers

demonstrate that they are still in the middle of resolving this discovery dispute. (See Opp., p. 4:22-5:6:17; Opp., Wolfson Decl., Exh. A; Reply, pp. 3:22-6:18.) The meet and confer effort continued after the filing of the instant Motion up to at least August 17, 2026. (Opp., Wolfson Decl., Exh. A, p. 1.) The parties' ongoing exchange of information renders the separate statement submitted by Defendant inaccurate with respect to the current state of the parties' dispute. Pursuant to Rule 3.1345, the separate statement alone must provide all the information necessary to understand the requests and responses in dispute.

Based on the

foregoing, the Court directs both parties to appear at the hearing on the Motion to discuss the status of Defendant's requests.

Conclusion

The parties are ordered to appear at the August 31, 2026 hearing to discuss the status of Defendant's discovery requests.

Judicial Assistant to give notice.